

HUMAN RESOURCES POLICY DOCUMENT

CODE OF CONDUCT POLICY

Standards, Ethics & Workplace Behavior Guide

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1. INTRODUCTION & PURPOSE

This Code of Conduct (hereinafter referred to as 'the Code') defines the ethical standards, professional behavior, and workplace norms expected of every individual associated with the organization. It serves as the foundational behavioral framework that guides how we interact with each other, our clients, vendors, and the broader public.

Adherence to this Code is not optional – it is a condition of employment and continued engagement with the organization. Every employee, regardless of seniority, geography, or employment type, is expected to understand, internalize, and embody the principles outlined in this document.

1.1 Why a Code of Conduct Matters

A clearly articulated Code of Conduct serves multiple critical organizational purposes:

- It establishes a shared understanding of acceptable and unacceptable behaviors, minimizing ambiguity.
- It creates a safe, inclusive, and respectful workplace where all employees can perform at their best.
- It protects the organization's reputation, legal standing, and business relationships.
- It demonstrates the organization's commitment to ethical governance and corporate social responsibility.
- It provides employees with a clear framework for making ethical decisions, especially in complex or gray-area situations.

1.2 Guiding Values

Our Code is grounded in the following core organizational values:

Value	What It Means in Practice
Integrity	We are honest, transparent, and accountable in all our actions. We do what we say, even when no one is watching.
Respect	We treat every individual with dignity, regardless of their role, background, or belief system.
Inclusion	We celebrate diversity and actively create an environment where everyone belongs and feels valued.
Excellence	We are committed to delivering high-quality work and continuously improving our skills and processes.
Accountability	We take ownership of our actions and their consequences. We hold ourselves and each other to high standards.

Value	What It Means in Practice
Collaboration	We achieve more together. We share knowledge, support colleagues, and put team success above individual ego.

2. PROFESSIONALISM IN THE WORKPLACE

Professionalism is the standard by which an individual's behavior, communication, attitude, and work quality are measured in a workplace context. It encompasses how we carry ourselves, how we treat others, and the quality and integrity of the work we produce. Professionalism is the foundation of a productive, respectful, and successful work environment.

2.1 Expected Professional Behaviors

2.1.1 Punctuality & Attendance

- Employees are expected to report to work on time and maintain a regular, consistent attendance record.
- Habitual tardiness or unexcused absences negatively impact team productivity and morale, and will be addressed through the performance management process.
- When an employee is unable to attend work or will be delayed, they must proactively inform their manager before the scheduled start time via phone or approved messaging platforms.
- Medical leave must be supported by a medical certificate for absences exceeding 3 consecutive days.

□ Punctuality Example

Ravi has been arriving 20-30 minutes late to daily team stand-ups three times a week for a month. His manager, after informal coaching, formally documents this pattern. At the next appraisal cycle, Ravi's 'Professionalism' rating is reduced from 'Meets Expectations' to 'Partially Meets Expectations,' affecting his bonus. This is a fair and proportionate response, consistent with this Code.

2.1.2 Work Quality & Productivity

- Employees are expected to consistently deliver work that meets or exceeds the quality standards defined for their role.
- Meeting deadlines, communicating progress proactively, and seeking help when blocked are all markers of professional responsibility.
- Employees should not misrepresent the status or quality of their work. If a task is incomplete or not meeting expectations, transparency is expected.
- Unauthorized personal use of company time, equipment, or resources for non-work activities is a breach of professionalism.

2.1.3 Communication Standards

- All workplace communication – whether verbal, written, or digital – must be clear, respectful, and professional.

- Emails and written communications should use professional language, proper grammar, and appropriate salutations.
- Avoid using all-caps (perceived as shouting), excessive exclamation marks, or aggressive language in professional communication.
- Respond to internal communications within 1 business day, and to client communications within 4 business hours, unless otherwise agreed.
- Do not share confidential company or client information over personal email, social media, or unapproved messaging applications.

2.1.4 Meeting Etiquette

- Arrive on time for all scheduled meetings, whether in-person or virtual.
- Come prepared: review the agenda in advance and bring relevant notes/data.
- During virtual meetings, ensure a professional background (physical or virtual), minimize background noise, and keep the camera on unless a valid reason exists.
- Do not interrupt others while they are speaking. Practice active listening.
- Avoid multitasking on unrelated work during meetings.
- Respect everyone's time: do not extend meetings beyond scheduled time without consent.

2.1.5 Conflict of Interest

- Employees must avoid situations where personal interests conflict, or could appear to conflict, with their professional responsibilities and the interests of the organization.
- A conflict of interest arises when an employee, directly or through a family member, has a personal, financial, or other interest in a matter where they have organizational decision-making authority.
- Common examples: approving a vendor who is a personal friend or relative; investing in a competitor; taking on consulting work for a client without disclosure; hiring a family member under your direct reporting line.
- All actual or potential conflicts of interest must be disclosed to HR and the employee's manager, in writing, as soon as they are identified.
- Undisclosed conflicts of interest may result in disciplinary action, including termination.

□ Conflict of Interest – Real Example

Anita is a Procurement Manager who receives a quote from her brother's printing company. Even though the quote is competitive, she must disclose this relationship to HR and recuse herself from the vendor selection decision. Another manager makes the decision. This is the correct process. If Anita had hidden the relationship and approved the vendor, it would constitute a serious conflict of interest and grounds for termination.

2.1.6 Confidentiality & Information Security

- All employees have a duty to protect the confidential information of the organization, its clients, and its employees.
- Confidential information includes: business strategies, financial data, client lists, pricing, personal employee data, trade secrets, intellectual property, product roadmaps, and merger/acquisition plans.
- Employees must sign the organization's Confidentiality and Non-Disclosure Agreement (NDA) at the time of joining.
- Confidential information must not be shared with unauthorized internal personnel or any external party without express written consent from the appropriate authority.
- Even after employment ends, the confidentiality obligation continues for the period specified in the employment contract or NDA (typically 2-5 years).

2.1.7 Social Media & Online Conduct

- Employees are personally responsible for what they post on social media, blogs, or other public platforms.
- Do not share confidential company information, client names, internal strategies, or trade secrets on any public platform.
- Do not post content that could be perceived as representing the company's views without explicit authorization.
- Engaging in personal attacks, defamatory statements, or hate speech targeting colleagues, clients, or competitors online is a violation of this Code, even if done outside work hours.
- The organization may ask employees to add disclaimers (e.g., 'Views are my own') when discussing industry topics where there could be confusion with official organizational positions.

2.2 Handling Organizational Resources

- Company assets (laptops, phones, vehicles, software, office equipment, and facilities) are provided for business use and must be handled with care and responsibility.
- Personal use of company assets must be incidental and must not interfere with work or result in additional cost to the organization.
- Employees must not install unlicensed software on company devices.
- Company assets must be returned in good condition upon separation. Damage due to negligence will be recovered from the final settlement.
- Company credit cards and expense accounts are strictly for business purposes. Personal charges are not permitted and must be repaid immediately.

3. DRESS CODE & PERSONAL PRESENTATION POLICY

The organization believes that appropriate dress and personal presentation contribute to a professional work environment and positively reflect on individuals and the organization. This policy establishes the expected standards of attire for various workplace settings and occasions.

3.1 General Principles

- Dress standards should be appropriate to the workplace environment, the tasks being performed, and any client or public interactions.
- Clean, well-maintained, and neat clothing is the baseline expectation regardless of dress category.
- Clothing that is offensive, provocative, expresses discriminatory messages, or is otherwise inappropriate for a professional setting is never permissible.
- Personal hygiene and grooming are essential components of professional presentation and are expected of all employees.

3.2 Dress Code Categories by Role & Occasion

Setting / Occasion	Appropriate Attire	Not Permitted
Office (Standard Business Casual)	Collared shirts, blouses, chinos, trousers, formal/casual dresses or sarees, clean jeans (dark, no rips)	Ripped or torn clothing, athletic wear, beachwear, graphic tees with offensive content
Client Meetings / Presentations	Business formal: suits, blazers, formal shirts, formal sarees, kurtas, formal dresses	Casual wear, jeans, open-toed sandals, excessive jewelry or strong perfume
Casual Friday / Team Events	Clean jeans, t-shirts (non-offensive), casual footwear, traditional wear	Loungewear, undergarments as outerwear, offensive slogans
Site / Warehouse / Lab	Safety boots, hard hats, reflective vests, work gloves (all mandatory per safety standards)	Open-toed footwear, shorts, loose clothing near machinery
Work from Home (Video Calls)	Business casual at minimum for video meetings. Top half visible on camera should be professional.	Pajamas or sleepwear on customer-facing or senior leadership calls

3.3 Religious, Cultural & Disability Accommodations

- The organization fully respects and accommodates religious, cultural, and traditional attire as part of its commitment to diversity and inclusion.
- Turbans, hijabs, kippahs, bindis, traditional Indian garments (dhoti, kurta, saree), and other religious/cultural attire are always permitted.
- Employees with medical conditions or disabilities that affect their ability to comply with specific dress code requirements may request a reasonable accommodation from HR.
- Accommodation requests are handled confidentially and on a case-by-case basis.

□ Dress Code Accommodation Example

Gurpreet Singh, a software developer who wears a turban for religious reasons, is scheduled to present to a client in New York. His turban is fully consistent with the 'client meeting' dress code. The client is informed that traditional/religious attire is standard and respected. No accommodation request is even needed in this case – the policy inherently accommodates his attire.

3.4 Dress Code Violations & Corrective Guidance

- If an employee comes to work in attire that does not meet the applicable dress standard, their manager or HR will address it privately and respectfully.
- The employee may be asked to change or, in exceptional circumstances (e.g., for a client meeting), to work from a private area until appropriate.
- First instances are treated as guidance opportunities. Repeated violations are addressed through the formal disciplinary process.
- No employee will be publicly humiliated or shamed regarding their attire.

4. WORKPLACE ETHICS & INTEGRITY

Workplace ethics are the moral principles and values that guide how employees conduct themselves in their professional capacity. The organization holds all employees to the highest ethical standards, and any breach of ethics is treated with the utmost seriousness.

4.1 Honesty & Transparency

- Employees must be truthful and accurate in all communications, reports, timesheets, expense claims, and official documents.
- Intentionally providing false or misleading information to the organization, clients, regulators, or auditors constitutes fraud and is grounds for immediate termination and potential legal action.
- 'White lies' or omissions of material facts that affect business decisions are also considered breaches of honesty.
- If an employee makes a mistake, they are expected to disclose it promptly and work toward a remedy, rather than concealing it. The organization treats honest mistakes differently from deliberate deception.

4.2 Bribery & Corruption Policy (Zero Tolerance)

- The organization has a zero-tolerance policy for bribery and corruption in all forms.
- Employees must not offer, give, receive, or solicit any bribe, kickback, facilitation payment, or corrupt advantage in connection with the organization's business.
- This applies equally to transactions with government officials, public servants, private companies, and individual clients.
- Gifts and entertainment may only be exchanged within the limits defined in Section 4.3. Any gift that could be construed as an attempt to influence a business decision is prohibited.
- Anti-bribery training is mandatory for all employees and must be completed within 30 days of joining and renewed annually.
- Violations of this policy are reportable to the organization's Ethics Hotline and will be investigated. Confirmed violations will be reported to law enforcement where legally required.

□ Real Bribery Scenario

A procurement officer received an all-expenses-paid weekend trip from a vendor who was being evaluated for a contract. The officer did not disclose this gift. When discovered during an audit, the officer was terminated for cause, the vendor was blacklisted, and the contract was re-tendered. The organization faced regulatory scrutiny but demonstrated good-faith remediation steps.

4.3 Gifts & Entertainment Policy

- Employees may accept or give gifts and entertainment only in the following circumstances:
 - The gift is of nominal value: under Rs. 2,500 (India) or \$100 (USA) per occurrence, per person, per year.
 - The gift is not in cash, cash equivalents, gift cards, or transferable vouchers.
 - The exchange occurs in a context consistent with normal business relationship-building.
 - It is not linked to any pending or anticipated business decision.
- All gifts received above the nominal threshold must be reported to the employee's manager and HR within 5 business days.
- The organization reserves the right to ask employees to return gifts that exceed the threshold or create a conflict of interest.

4.4 Intellectual Property & Proprietary Information

- All work products, inventions, software, designs, processes, methodologies, and creative works produced by an employee in the course of their employment are the sole property of the organization.
- Employees may not use the organization's intellectual property for personal projects, freelance work, or side businesses without explicit written authorization.
- Employees must not copy, reproduce, or distribute third-party copyrighted materials without appropriate licenses.
- Reverse engineering of competitors' software or unauthorized access to third-party data is strictly prohibited.

4.5 Insider Trading & Financial Integrity – (Applicable to listed entities or those with equity)

- Employees who, in the course of their work, gain access to material non-public information (MNPI) about the organization, its clients, or partners are prohibited from trading securities based on such information.
- MNPI includes: unannounced financial results, merger/acquisition plans, new product launches, significant contracts, regulatory actions, and leadership changes.
- Violations of insider trading laws carry severe criminal penalties and will result in immediate termination.

4.6 Whistleblowing & Ethical Reporting

- The organization strongly encourages employees to report any suspected violations of this Code, law, or regulation through the organization's Ethics Hotline, which is available 24/7 at: ethics@company.com or +1-800-XXX-XXXX (USA) / +91-XXXXX-XXXXX (India).

- All reports can be made anonymously. The identity of the reporting employee will be kept strictly confidential to the extent permitted by law.
- The organization strictly prohibits any form of retaliation against employees who report concerns in good faith. Retaliation is itself a serious disciplinary offense.
- False reports made in bad faith (maliciously or frivolously) are also a violation of this Code and may result in disciplinary action.

Ethics Hotline – Reporting Options

Online Portal: ethics.company.com (anonymous submissions available) Email: ethics@company.com Phone (India): +91-XXXXX-XXXXX (24/7, confidential) Phone (USA): 1-800-XXX-XXXX (24/7, option for anonymous reporting) Direct to HR Head: hrhead@company.com Direct to Legal & Compliance: legal@company.com

5. ANTI-HARASSMENT POLICY

The organization is unconditionally committed to maintaining a workplace that is free from all forms of harassment. Harassment is a violation of an employee's fundamental right to dignity and an equitable work environment. This policy applies to all workplace interactions, including those that occur outside of formal working hours and locations, such as company events, business travel, and virtual communications.

5.1 Definition of Harassment

Harassment is defined as any unwelcome conduct, whether verbal, physical, visual, written, or digital, that:

- Is directed at an individual based on any protected characteristic (see Section 6); OR
- Has the purpose or effect of creating an intimidating, hostile, degrading, humiliating, or offensive work environment; OR
- Unreasonably interferes with an individual's job performance.

5.2 Types of Harassment

5.2.1 Sexual Harassment

Sexual harassment is a specific and particularly serious form of harassment. The organization follows the Prevention of Sexual Harassment (POSH) Act, 2013 (India) and Title VII of the Civil Rights Act (USA) as foundational legal frameworks.

Sexual harassment includes two recognized forms:

- **Quid Pro Quo Harassment:** Where submission to or rejection of sexual conduct is explicitly or implicitly used as a basis for employment decisions (hiring, promotion, assignments, performance evaluation).
- **Hostile Work Environment Harassment:** Where unwelcome conduct of a sexual nature is severe or pervasive enough to create a hostile, intimidating, or abusive working environment.

Specific examples of sexual harassment include:

- Unwanted sexual advances, requests for sexual favors, or repeated requests for dates after refusal.
- Sexually explicit jokes, comments, innuendos, or stories.
- Displaying, forwarding, or discussing sexually explicit materials in the workplace.
- Unwanted physical contact: touching, hugging, kissing, or blocking someone's path.
- Sending sexually explicit emails, messages, or images.
- Making sexual comments about a person's appearance, clothing, or body.

- Asking intrusive questions about a person's sexual life or personal relationships.
- Staring, leering, or making offensive gestures.

□ Sexual Harassment – Scenario 1 (Quid Pro Quo)

Rohan, a team lead, tells his junior colleague Priya that if she agrees to go on a dinner date with him, he will recommend her for a promotion. This is textbook quid pro quo sexual harassment. Priya reports the incident to the Internal Complaints Committee (ICC). The ICC investigates and finds Rohan guilty. He is demoted, required to undergo mandatory harassment training, and placed on a formal warning. The promotion process for Priya is taken out of Rohan's hands entirely.

□ Sexual Harassment – Scenario 2 (Hostile Environment)

James in the Chicago office regularly sends 'funny' memes and jokes of a sexual nature in the team WhatsApp group. Two female colleagues feel uncomfortable but fear speaking up. A third colleague reports it to HR anonymously. HR investigates, confirms the pattern, and James receives a written warning and mandatory POSH/harassment training. The team is reminded of the communication conduct standards.

5.2.2 POSH – Internal Complaints Committee (ICC) – India

- As mandated by the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 (POSH Act), the organization has constituted an Internal Complaints Committee (ICC) at every office location with 10 or more employees.
- ICC Composition: An external member (from an NGO/legal background), at least one senior woman employee as Presiding Officer, and at least two other members committed to women's welfare.
- The ICC accepts written complaints within 3 months of the incident. The inquiry must be completed within 90 days.
- During the inquiry, both the complainant and the respondent have the right to be heard and to present witnesses.
- The ICC can recommend: interim relief (transfer, leave), monetary compensation, disciplinary action up to termination, legal referral.
- Annual POSH reports are submitted to the District Officer and published in the organization's Annual Report.

5.2.3 Psychological / Emotional Harassment (Workplace Bullying)

Workplace bullying is repeated, unreasonable behavior directed at an employee or group of employees that creates a risk to their health and safety. It includes:

- Persistently criticizing or humiliating an employee's work in front of others.
- Deliberately excluding an employee from team meetings, communications, or activities.
- Yelling, screaming, or using threatening language.
- Spreading malicious rumors or gossip about a colleague.

- Setting unreasonable workloads or impossible deadlines as a form of pressure.
- Micro-managing as a form of control and intimidation.
- Undermining an employee's work by withholding necessary information or resources.

□ Workplace Bullying – Real Example

Sarah, a new manager in the sales team, consistently ridicules her team member Alex's performance in front of the entire department during Monday morning meetings, even when Alex's numbers are acceptable. Alex develops anxiety and starts taking frequent sick days. Alex's peer reports this to HR. After investigation, Sarah undergoes mandatory management training and coaching. A 6-month improvement plan for her leadership behavior is put in place. Alex is reassigned to a different team if desired.

5.2.4 Cyber Harassment

- Harassment through digital channels (email, messaging apps, social media, intranet, video calls) is treated with the same seriousness as in-person harassment.
- Prohibited cyber behaviors include: threatening messages, unwanted explicit content, impersonation, doxxing (sharing private information without consent), and online stalking.
- Evidence of cyber harassment (screenshots, email threads) should be preserved by the complainant and submitted to HR/ICC.

5.3 Complaint Process for Harassment

Any employee who experiences or witnesses harassment is strongly encouraged to take the following steps:

1. Communicate Objection (if safe to do so): The target may clearly communicate to the harasser that the behavior is unwelcome and must stop immediately. This step is optional – no employee is required to confront their harasser.
2. Document the Incident: Write down dates, times, locations, witnesses, what was said or done, and any evidence (emails, messages, photos).
3. Report to HR or ICC: Submit a written complaint to HR (posh@company.com) or the ICC Presiding Officer within the time limit. Verbal complaints are acknowledged and formalized in writing by HR.
4. Interim Measures: The ICC/HR may implement interim protective measures, such as temporary reassignment or paid administrative leave for the respondent, to protect the complainant during the investigation.
5. Investigation: The ICC conducts a fair, impartial, and time-bound investigation, giving both parties equal opportunity to present their case.
6. Outcome & Appeal: The ICC issues its report within 90 days. Both parties may appeal the decision to the senior HR leadership or, in India, to the District Officer within 90 days of the report.

Confidentiality During Complaints

All harassment complaints and investigations are handled with strict confidentiality. The names of the complainant, respondent, and witnesses are not disclosed without consent, except as required by the investigation process or law. Breach of confidentiality by any party involved in the investigation is a serious disciplinary offense.

6. ANTI-DISCRIMINATION POLICY

The organization is unequivocally committed to creating and maintaining a workplace that is free from unlawful discrimination. All employment decisions – including recruitment, promotion, compensation, training, assignments, and separation – are based solely on merit, qualifications, performance, and business requirements.

6.1 Protected Characteristics

Discrimination on the basis of any of the following characteristics is strictly prohibited under this policy and applicable law:

Protected Characteristic	Applicable Geography
Gender / Sex (including pregnancy)	India & USA
Race, Color, Ethnicity, Caste	India & USA
Religion or Belief System	India & USA
National Origin	India & USA
Age (40+ under ADEA in USA; any age in India)	India & USA
Disability (Physical or Mental)	India (RPWD Act) & USA (ADA)
Sexual Orientation & Gender Identity	India (NALSA judgment, 2014+) & USA (Bostock, 2020)
Marital Status	India & USA (many states)
Pregnancy, Maternity, Parental Status	India & USA
HIV/AIDS Status	India (HIV/AIDS Act, 2017) & USA
Political Views / Trade Union Membership	India
Veteran Status	USA
Genetic Information	USA (GINA)

6.2 Forms of Discrimination

6.2.1 Direct Discrimination

Treating someone less favorably than another person in the same or comparable situation because of a protected characteristic.

□ **Direct Discrimination Example**

Two candidates – one male (Vikram) and one female (Priya) – are interviewed for a team lead position. Priya is objectively better qualified. The hiring manager selects Vikram, citing that 'this role requires someone who won't need maternity leave soon.' This is direct discrimination based on sex/gender and potentially pregnancy status. The manager faces disciplinary action, and Priya is given priority consideration in the re-opened role.

6.2.2 Indirect Discrimination

Applying a provision, criterion, or practice that, while neutral on its face, disproportionately disadvantages people with a protected characteristic, unless objectively justified.

□ **Indirect Discrimination Example**

A company requires all applicants to submit a full-body photograph with their application. While this seems neutral, it may screen out qualified candidates based on race, disability, or gender presentation – characteristics irrelevant to job performance. This is indirect discrimination. The organization's application form must not request photographs unless there is a specific, justifiable, and documented job-related reason.

6.2.3 Harassment as Discrimination

As detailed in Section 5, harassment based on a protected characteristic is itself a form of discrimination and is covered under both the anti-harassment and anti-discrimination policies.

6.2.4 Victimization / Retaliation

Treating an individual unfavorably because they have made or supported a discrimination complaint, participated in an investigation, or exercised their legal rights is a form of discrimination called victimization. This is strictly prohibited and independently actionable.

6.3 Reasonable Accommodation – Disability

- Employees with physical or mental disabilities have the right to reasonable accommodation that enables them to perform their essential job functions.
- Examples of reasonable accommodation: modified work schedules, assistive technology, ergonomic adjustments, remote work options, ramp access, accessible restrooms, additional breaks.
- The accommodation process begins with a written request to HR, followed by an interactive discussion to determine appropriate adjustments.

- The organization is not required to provide accommodation that imposes an undue hardship on business operations, or that fundamentally alters the nature of the role.

□ **Disability Accommodation Example**

Amit has been diagnosed with multiple sclerosis, which causes fatigue in the afternoons. He requests to shift his work hours to 7 AM – 3 PM instead of 9 AM – 5 PM. HR and his manager review the request. Since his role does not have mandatory afternoon client meetings, the accommodation is approved. Amit continues to perform at the same level with this adjustment.

6.4 Equal Opportunity Employment – Recruitment & Promotions

- All job advertisements, selection criteria, and interview processes are reviewed by HR to ensure they do not contain discriminatory requirements or language.
- Interview panels are trained on unconscious bias and structured interviewing techniques.
- Promotion decisions are based on documented performance data, skills assessments, and development plans – not on subjective impressions that may be influenced by bias.
- The organization tracks diversity metrics in hiring and promotion to identify and address systemic inequities.

6.5 Affirmative Action & Diversity Initiatives

- In India, the organization complies with reservation requirements for Persons with Disabilities (RPWD Act) and encourages applications from all scheduled communities.
- In the USA, as a federal contractor, the organization maintains an Affirmative Action Plan (AAP) covering women, minorities, veterans, and persons with disabilities.
- Diversity hiring goals are aspirational benchmarks, not quotas. They guide outreach and sourcing efforts without compromising merit-based selection.

7. DISCIPLINARY FRAMEWORK & PROGRESSIVE DISCIPLINE

The organization follows a structured, progressive disciplinary approach for addressing misconduct, performance issues, or violations of this Code. The goal of progressive discipline is to provide employees with a fair opportunity to correct their behavior before more serious consequences are applied, while also protecting the workplace and its members from ongoing misconduct.

7.1 Categories of Misconduct

Minor Misconduct

Behavior that does not cause significant harm but needs correction. Examples:

- Occasional tardiness or absenteeism.
- Minor dress code violations.
- Unprofessional communication in isolated instances.
- Minor insubordination or attitude issues.

Major Misconduct

Repeated or more serious behavior. Examples:

- Habitual tardiness after coaching.
- Insubordination or disrespectful behavior toward a manager.
- Unauthorized disclosure of moderately sensitive information.
- Dishonesty in expense claims (below a significant threshold).
- Workplace bullying (first documented instance).

Gross Misconduct

Behavior so severe that it may warrant immediate dismissal without prior warnings. Examples:

- Theft, fraud, or embezzlement.
- Physical assault or threat of violence.
- Sexual harassment or serious workplace harassment.
- Serious breach of confidentiality or data theft.
- Being under the influence of alcohol or illegal drugs at work.
- Deliberate destruction of company property.
- Falsification of official documents or records.
- Insider trading or significant bribery.

7.2 Progressive Discipline Steps

Stage	Action	Record Retention
Step 1: Verbal Warning	Manager addresses the issue privately in a documented conversation. Employee is informed of the concern and expected behavior change. No formal documentation required, but manager notes it in HRMS.	Manager's record – 6 months
Step 2: Written Warning	Formal written notice issued by HR with specific details of the misconduct, expected improvement, and timeline. Employee must acknowledge in writing.	HR file – 12 months
Step 3: Final Written Warning / PIP	Formal Performance Improvement Plan (PIP) with specific measurable targets, a defined timeline (30-90 days), and consequences of failure to improve. Department Head and HR signature required.	HR file – 24 months
Step 4: Termination	Employment termination following the disciplinary process, with documented justification. Employee receives termination letter stating reason, notice period (or pay in lieu), and final settlement details.	Permanent record

Summary Dismissal (Gross Misconduct)

Cases involving gross misconduct may bypass all preliminary steps and proceed directly to termination after a fair investigation. In India, the organization follows the principles of natural justice (show-cause notice, opportunity to respond) even in gross misconduct cases, as mandated by labor law. In the USA, at-will employment doctrine applies unless otherwise contracted.

7.3 Employee Rights During Disciplinary Proceedings

- The right to be informed of the specific allegation(s) in writing before any disciplinary meeting.
- The right to a reasonable amount of time to prepare a response.
- The right to be accompanied by a colleague or, in some jurisdictions, a legal representative or union representative at formal disciplinary hearings.
- The right to respond to allegations and present evidence in their defense.
- The right to appeal any disciplinary outcome to a higher authority (Department Head or an independent Appellate Committee).
- The right to be free from retaliation for exercising their rights under this process.

□ Fair Disciplinary Process Example

An employee, Deepa, is accused of accessing a colleague's confidential client files without authorization. The following process is followed: 1. HR issues a Show Cause Notice detailing the allegation. 2. Deepa is given 5 working days to submit a written response. 3. A disciplinary committee (HR + Dept Head + neutral senior manager) reviews the response and meets with Deepa. 4. Deepa explains she accessed the file accidentally and immediately exited. 5. The committee finds no malicious intent but notes a policy breach. 6. A written warning is issued with guidance on data access procedures. 7. Deepa acknowledges the warning and completes mandatory data security training. This reflects due process even for a clear policy breach.

8. SPECIFIC WORKPLACE SITUATIONS & CONDUCT STANDARDS

8.1 Romantic Relationships at Work

- The organization recognizes that workplace relationships may develop organically. However, all employees are expected to exercise professionalism and discretion.
- Consensual romantic relationships between employees are not prohibited. However, relationships between a direct supervisor and their direct report are strongly discouraged and must be disclosed to HR.
- Upon disclosure, HR will assess whether reassignment is appropriate to eliminate a real or perceived conflict of interest.
- All romantic relationships in the workplace must be fully consensual. Any unwanted pursuit of a romantic relationship after rejection constitutes harassment.
- Public displays of affection at the workplace are inappropriate and must be avoided.

8.2 Substance Use – Alcohol & Drugs

- The organization operates a strict Drug-Free Workplace. Employees must not report to work under the influence of alcohol, illegal drugs, or non-prescribed controlled substances.
- Consumption of alcohol is not permitted on company premises during work hours, except at company-sanctioned events where it is explicitly approved and served in moderation.
- Employees who are prescribed medications that may impair their work performance must inform their manager and/or HR proactively, and must not operate machinery or drive on behalf of the company while impaired.
- Employees who believe they have a substance use disorder are encouraged to seek help confidentially through the EAP (Employee Assistance Program) before a workplace incident occurs. Voluntarily seeking help is treated with discretion; testing positive after a workplace incident is treated as gross misconduct.

8.3 Violence & Threatening Behavior (Zero Tolerance)

- Any form of physical violence, threats of violence, intimidation, or violent gestures in the workplace or at company events will result in immediate suspension pending investigation and likely immediate termination.
- This includes threats made via digital channels (email, messaging, social media).
- Employees who feel physically unsafe should immediately contact security and then HR/management.
- The organization will cooperate fully with law enforcement in all cases involving violence or credible threats.

8.4 Personal Relationships & Nepotism

- Family members of existing employees may apply for positions in the organization but will undergo the same competitive, merit-based selection process as all candidates.
- An employee must not be directly involved in hiring, evaluating, or supervising an immediate family member (spouse, parent, child, sibling).
- All relationships that could create a conflict of interest must be disclosed to HR.

8.5 Off-Duty Conduct

While the organization respects employees' right to a private life, certain off-duty behaviors may still impact employment when they:

- Harm the organization's reputation significantly.
- Involve criminal activity, particularly of a violent or financial nature.
- Directly affect the employee's ability to perform their job duties.
- Involve violations of confidentiality or intellectual property obligations.

The organization will carefully assess each situation on its specific facts before taking any action related to off-duty conduct.

9. TRAINING, ACKNOWLEDGEMENT & POLICY ENFORCEMENT

9.1 Mandatory Training Programs

The following training programs are mandatory for all employees:

Training Program	Frequency	Applies To
Code of Conduct Orientation	At joining	All employees
POSH / Anti-Harassment Training	Annual + At joining	All employees
Anti-Bribery & Ethics Training	Annual	All employees
Unconscious Bias in Hiring	Annual	All managers + HR
Data Privacy & Information Security	Annual + At joining	All employees
Leadership Conduct & Ethics	Annual	Manager level and above
Whistleblower Policy Training	At joining	All employees

Failure to complete mandatory training within the specified deadline is a disciplinary matter and may affect performance ratings and bonus eligibility.

9.2 Employee Acknowledgement

Every employee must read and acknowledge this Code of Conduct:

- Within 5 business days of joining (new hires).
- Annually, during each policy review cycle (existing employees).
- Following any material update to the policy (within 10 business days of notification).

The acknowledgement is recorded in the HRMS. An employee's failure to acknowledge does not exempt them from the obligations of this Code.

9.3 Manager Responsibilities

All people managers have additional responsibilities under this Code:

- Lead by example: Model the behaviors expected under this Code at all times.
- Proactively identify and address potential misconduct or unethical behavior within their teams.
- Create a psychologically safe environment where team members feel comfortable raising concerns.

- Never engage in or permit retaliation against employees who raise legitimate concerns.
- Complete all required documentation related to disciplinary proceedings promptly and accurately.
- Escalate all complaints of harassment or discrimination to HR immediately, without prejudging the complaint.

9.4 Policy Enforcement & Non-Negotiable Boundaries

This Code applies equally to all employees, at every level, including senior leadership and the Board of Directors. No employee is exempt from this Code on account of their tenure, seniority, business contribution, or personal relationship with leadership.

☐ Non-Negotiable Standards

The following behaviors will ALWAYS result in investigation and likely termination, regardless of the employee's seniority or tenure: - Sexual harassment or assault - Physical violence or threats of violence - Theft or financial fraud of any amount - Deliberate falsification of company records - Serious breach of customer data privacy - Bribery or corruption - Gross insubordination combined with violence - Violation of insider trading laws

9.5 Grievance Escalation Matrix

Type of Concern	First Point of Contact	Escalation Path
Professionalism / Dress Code / Attendance	Direct Manager	HR Business Partner
Compensation / Payroll Errors	HR/Payroll Team	HR Head
Workplace Bullying / Harassment	HR or ICC	HR Head / Legal
Sexual Harassment (POSH)	ICC Presiding Officer	District Officer (India) / EEOC (USA)
Discrimination	HR Business Partner / Legal	HR Head / Legal / Regulatory Body
Bribery / Ethics Violation	Ethics Hotline (anonymous)	Chief Ethics Officer / Legal / CEO
Manager Misconduct	HR Business Partner (bypassing manager)	HR Head / Senior Leadership

Contact HR & Ethics

HR General: hr@company.com POSH/ICC (India): posh.icc@company.com Ethics Hotline: ethics@company.com | 24/7 anonymous line HR Head: hrhead@company.com Legal & Compliance: legal@company.com EEOC (USA): www.eeoc.gov | 1-800-669-4000

— END OF CODE OF CONDUCT POLICY —

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